

		Further, the application for relief is timely since the application was filed within 6 months of entry of default on 1-28-26 and default judgment on 2-17-26. (ROA 29, 47.) Therefore, the request to set aside the default and default judgment is GRANTED. <u>Attorney Fees and Costs:</u> Code of Civil Procedure section 473, subdivision (c)(1) states: “Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following: [¶] (A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party. [¶] (B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund. [¶] (C) Grant other relief as is appropriate.” If relief from default is based on evidence other than “attorney affidavit of fault,” the court may in its discretion order the defendant to pay the costs, including attorney fees, incurred by the plaintiff in obtaining the default judgment. (<i>Rogalski v. Nabers Cadillac</i> (1992) 11 Cal.App.4th 816, 823; <i>Vanderkous v. Conley</i> (2010) 188 Cal.App.4th 111, 118-119.) Plaintiff requests reasonable attorneys’ fees and costs to defray costs incurred by Plaintiff to obtain the default and default judgment and to defend against this Motion. Defendant is ordered to pay \$1,200 in attorney fees and costs to Plaintiff. Defendant is ordered to file and serve the proposed Answer within 10 days of the notice of this ruling. To the extent, the parties have filed an Opposition and Reply to a Motion to Stay Enforcement of Default Judgment (ROA 56, 64), no moving papers in support of a Motion to Stay Enforcement of Default Judgment were filed with the Court. Moving Defendant to give notice.
7	25-01536474 <i>Bruce vs. South County Hospice, Inc.</i>	Motion to BRING ELDER ABUSE/NEGLECT ACTION Plaintiff Maria Bruce’s Petition to Bring Elder Abuse/Negligent Action in the Name of William Bruce Deceased is CONTINUED to _____. Shortly after Plaintiff filed the instant motion, Defendant South County Hospice, Inc. dba Cabrillo Hospice filed an answer to the complaint on 3/10/26. On 5/27/26, the court continued the hearing on this motion to the current date. While the clerk served Defendant’s counsel with notice of the new hearing date, there is no proof that Plaintiff ever served Defendant with the motion. California Rules of Court, rule 3.1300(c) requires that a

		proof of service of the moving papers be filed with the court no later than 5 court days before the date set for the hearing. No later than 5 court days before the continued hearing date, Plaintiff is ordered to file a proof of service of the motion.
9	24-01397104 <i>Doyle vs. Waldorf Astoria Monarch Beach & Resort Club</i>	Motion for Summary Judgment and/or Adjudication CONTINUED
10	24-01440278 <i>Hong vs. Mercedes-Benz USA, LLC</i>	Motion to Comply
11	26-01542892 <i>Hovarter vs. Monarch Heavy Haul Corporation</i>	Petition for Writ CONTINUED
12	25-01523245 <i>ICK International, Inc. vs. Jang</i>	Motion to Be Relieved as Counsel of Record The motion of attorney S. Young Lim and Jessie Y. Kim to withdraw as attorney of record for Defendant Byungchul Jang is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Additionally, prior to being relieved, counsel must provide Plaintiff's counsel with the last known address, telephone number, and email address of Jang. Moving attorneys are to give notice.
13	25-01461247 <i>Mike Bubalo Construction CO., Inc vs. Yorba Linda Water District</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint Defendants Yorba Linda Water District, Reza Afshar, and Rosanne Weston's Demurrer to the Second Amended Complaint (SAC) is SUSTAINED without leave to amend. The 2nd cause of action requests a writ of mandate to withdraw or modify a performance evaluation. "The exhaustion of administrative remedies doctrine applies when there is an administrative remedy to questionable government action. It assures certain prerequisites are met before legal action is taken. Where an administrative remedy is provided by statute, relief must first be sought from the administrative body. This is a fundamental rule of procedure followed under the doctrine of stare decisis, and binding upon all courts. A court's intervention before an administrative agency has resolved the claim constitutes jurisdictional interference. Courts have no discretion to relax the exhaustion doctrine." (<i>Casa Blanca Beach Estates Owners' Assn. v. County of Santa Barbara</i> (2024) 102 Cal.App.5th 1303, 1308-1309 (<i>Case Blanca</i>) (cleaned up).) "An administrative decision is final, i.e., ripe, when the agency has exhausted its jurisdiction